

HEADNOTE

“1. As the Local Chamber Düsseldorf has already decided (UPC_CFI_539/2024, Order of 19 November 2025, Headnotes 1, 3, Paras. 28 et seq. , Bekaert v. Siltronic), the following examination is required regarding the scope of disclosure of the detailed description to the claimant: a) As a first step, the question must be asked whether the information or evidence constitutes or contains trade secrets, personal data of third parties, or other confidential information. b) If this is the case, in a second step, this information must be redacted if it is irrelevant to the question of patent infringement or acts of use. c) If confidential information concerns the infringement question and/or acts of use, it must be decided in a third step on a case-by-case basis whether it is disclosed to the claimant but the claimant is obliged to maintain confidentiality towards third parties, or whether access by the claimant is to be restricted to a specific group of persons.

2. With regard to the relevance of confidential information to the question of patent infringement (second step), the following applies: a) Information that the expert actually relied upon when examining patent infringement in his detailed description is generally to be considered relevant. The respondent, who relies on the necessity of redaction, must demonstrate that this is not the case for certain information as an exception. The objection that patent infringement could have been sufficiently assessed on the basis of other information is irrelevant. b) However, if it is information that the expert did not rely upon when examining the infringement question, it is for the claimant to demonstrate its relevance. If the expert extensively quoted from documents when preparing the detailed description and the claimant nevertheless seeks disclosure of these documents as well, he must also have argued why the remaining content of these documents is of importance in addition to the detailed description. c) The relevance of certain information to patent infringement may also arise from the fact that, while not directly necessary for subsuming the features under the patent claims, it is nevertheless required for understanding the statements as a whole.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Procedural order

PATENT
EP 3 802 413

HYDROGEN PRODUCTION BY
STEAM METHANE REFORMING

KEYWORDS

Inspection and evidence preservation

Release of the detailed description

Protection of confidential information

SUMMARY

The Local Division in Düsseldorf issued a procedural order. The patent at issue relates to hydrogen production by steam methane reforming. According to the headnotes of the decision, courts must apply a three-step test when deciding whether to disclose confidential information to an opponent, beginning by identifying whether the information contains trade secrets, personal data, or other confidential material, then determining whether redaction is appropriate if the information is irrelevant to patent infringement, and finally deciding on a case-by-case basis how to handle disclosure when confidentiality concerns the infringement question itself. When assessing relevance in the second step, information that an expert actually relied upon in their analysis is presumed relevant unless the party seeking redaction can demonstrate otherwise, whereas information the expert did not rely upon must be shown relevant by the party requesting disclosure. Furthermore, relevance may also arise when information is not directly necessary to match patent claim features but is nonetheless required to understand the expert's overall conclusions.